CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
Wednesday, January 16, 2019
5:30 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 5:30 p.m. on Wednesday, January 16, 2019 in the Auditorium at Sherbondy Village, 215 President Barack Obama (Perviz) Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. PUBLIC INPUT:
Agenda Items Only

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said some of the descriptions does not have the city clerk involved with it. The city clerk is the custodian of records and the three (3) appointed officials should work closely together. The legislation making the city attorney the chief ethics officer does not show where training will be provided for that person. She cautioned the commission about making any decisions regarding the change orders because years ago there were issues and some of the same people that were here then, are here now.

Eric Redmon, Villa Francine, Opa-locka, FL, congratulated all of the new commissioners on being elected. He asked the commission to stay within the parameters of the attorneys contract when making any decision regarding it.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, said she is in support of the discussion on the city contract and hopes that the City will save money by these actions.

6. RESOLUTIONS:

a) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE CITY ATTORNEY SERVICES RFP FOR ADVERTISEMENT; FURTHER DIRECTING THE CITY CLERK TO ADVERTISE IN PUBLICATIONS FOR _____ DAYS WITH A SUBMISSION DEADLINE OF _____ 2019; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Commissioner Kelley to pass the resolution.

Commissioner Kelley said he sponsored the item because he feels it is necessary. He asked for input from his colleagues and wants to hear their thoughts and/or tweaking of the RFP before putting it out.

Vice Mayor Davis said he has reviewed the RFP and has a few minor concerns. One of them suggests an outside firm as opposed to an individual and he would like for whoever is chosen to be in-house and not just firms. He also does not see where there is a threshold for years of experience to ensure that a qualified attorney is hired.

Commissioner Kelley said he is not partial either way and thinks whoever is here should be qualified to do the job.

Mayor Pigatt said information has been received regarding this and it is conflicting. He asked that it be held until they have an outside firm to provide legal counsel to minimize exposure to potential litigation. He asked Commissioner Kelley how many days he had suggested to advertise the position.

Commissioner Kelley said that he suggested thirty (30) days from the day it is advertised to allow for maximum exposure and more experienced persons to apply.

Mayor Pigatt asked what publications were used for advertising the city attorney's position in the past.

City Clerk Flores said the Miami Herald employment section, the Daily Business Review, The Miami Times, Miami-Dade County League of Cities, National League of Cities, and Florida league of Cities; Human Resources also refers their job opportunity sites as potential advertising sources.

Mayor Pigatt said he believes thirty (30) days is a limited amount of time for advertising and for allowing the preparation of RFP's for submission. He proposed to amend the item to forty five or sixty days.

A motion was made to amend the item to forty five (45) days.

It was moved by Mayor Pigatt, seconded by Vice Mayor Davis to amend the item.

Commissioner Kelley said he would allow for forty five, but not sixty days even though he feels thirty days is sufficient time because the matter is time sensitive and all of the places that have been mentioned are aware of the publication sites and frequent them often.

Vice Mayor Davis proposed a friendly amendment of 5 years of experience for applying for the position.

Commissioner Bass said her concern is that if they do not accomplish what they are looking for in thirty days, where will the City be?

Commissioner Kelley said if no one applies, then the City will re-advertise the position.

There being no further discussion, the motion on the amendment failed by a 3-2 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes
Commissioner Kelley	No
Commissioner Bass	No
Mayor Pigatt	Yes

A motion was made to table this item until items b and c have been discussed since they are directly related.

It was moved by Mayor Pigatt, seconded by Vice Mayor Davis to table item 6(a).

Commissioner Kelley said he does not like this because if the mayor wanted the items to be placed out of sequence for discussion and consideration, he should have stated this at the beginning, but since it did not receive the desired outcome, other options are being suggested after the fact. He is not in favor of tabling this item now as it will set precedence for future proceedings when the desired outcome is not achieved.

Vice Mayor Davis said he does not think it is necessary to table the item at this time as it can always be brought back.

Mayor Pigatt asked the vice mayor if he is withdrawing his second.

Vice Mayor Davis said he is not withdrawing his second and wants the commission to vote on the present motion.

There being no further discussion, the motion to table the item failed by a 4-1 vote.

Commissioner Burke	No
Vice Mayor Davis	No
Commissioner Kelley	No
Commissioner Bass	No
Mayor Pigatt	Yes

Commissioner Kelley noted that he accepted the friendly amendment from the vice mayor.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

b) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, EXTENDING THE FIRST AMENDED AGREEMENT WITH THE BROWN LAW GROUP, LLC (TBLG) TO APRIL 5, 2019; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Commissioner Kelley for discussion.
Commissioner Kelley said when he brought up the timeframe issue, he was under the impression that there would be sufficient time to address the attorney contract and put out an RFP. He asked the attorney for clarity on the expiration date of his contract.

City Attorney Brown said he explained to the city manager that due to the fact that the item directly affects him, he cannot provide any input because the discussion is on the record.

Commissioner Kelley said he wants to ensure that this is done in a timely manner so that the City does not end up without legal representation.

Mayor Pigatt said he is uncomfortable with this because the commission does not have legal counsel regarding this matter at this time and that leaves the door open for potential litigation; without legal counsel, he cannot support the item at this time. He asked the sponsor to defer the item as they have up until the day before the attorney's contract expires which is March 4th to act on it.

Commissioner Kelley said he is not deferring the item.

There being no further discussion, the motion on the resolution passed by a 4-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	No

c) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPOINTING OUTSIDE COUNSEL TO ADVISE THE CITY ON ISSUES RELATED TO THE CITY ATTORNEY'S CONTRACT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Commissioner Burke said it is a travesty that the attorney does not take the high road and move on knowing the position the City is in. He does not support the item.

Vice Mayor Davis said he does not see a problem with retaining outside legal counsel as most of the current commission is new and may not know all of the legal jargon to make decisions regarding business such as this.

Commissioner Bass agreed with the sentiments of the vice mayor.

Commissioner Kelley asked the mayor about the outside counsel he is proposing and the cost associated with it.

Mayor Pigatt said the attorney is Stephen Hunter-Johnson and the legal counsel is being provided pro bono to the City.

Commissioner Burke asked the mayor to be mindful of the timeframe for all of this to happen.

Commissioner Kelley said that if it is going to be pro bono, then he will support it.

Vice Mayor Davis agreed with Commissioner Kelley.

There being no further discussion, the motion on the resolution passed by a 4-1 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

City Attorney Brown said when he first came to the City, sitting City Manager, Steve Shiver, declared a state of emergency in the City and when the police cars were not in working order, he paid for expenses out of his pocket; that is how he feels about the City. He had hoped Commissioner Burke would have come to him to speak on the matter; however the commissioner has chosen to ignore all of his attempts to communicate.

Mayor Pigatt asked that the dais maintain decorum when discussion is in progress.

d) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROPRIATING $3,000.00 FOR TRAVEL EXPENSES FOR THE MAYOR, CITY MANAGER, AND PUBLIC WORKS DIRECTOR TO TRAVEL TO TALLAHASSEE TO LOBBY AND OURSUE FUNDING FOR CIT PROJRACTS AND INITIATIVES; REQUESTING APPROVAL FROM THE CHIEF INSPECTOR GENERAL/OVERSIGHT BOARD OF APPROPRIATION; REQUESTING THAT THE CHIEF INSPECTOR GENERAL COORDINATE A MEETING WITH THE JOINT LEGISLATIVE AUDITING COMMITTEE (JLAC); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt and Commissioner Kelley*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Commissioner Kelley for discussion.

Mayor Pigatt asked if the funds are enough for travel and what will be needed.

Acting City Manager Daughtrey said the funds were rounded off to one thousand dollars per person and will cover the round trip flight.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

e) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE COMPLETED AUDITS THAT WERE PREVIOUSLY PRESENTED; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.
Mayor Pigatt said he brought forth the item because it was discussed in a previous meeting, but no action had been taken; this will solve the issue.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

f) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH CITY NATIONAL BANK OF FLORIDA, IN A FORM ACCEPTABLE TO THE CITY ATTORNEY, TO UTILIZE A PORTION OF EXCESS PLEDGED REVENUES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Attorney*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Commissioner Bass for discussion.

Commissioner Burke asked what the item is about.

City Attorney Brown said when a financial emergency was announced, the City had not provided any documents to the bank stating that any of this was taking place and therefore, defaulted on the bond agreement that was made. This agreement will allow the City to pay off the first bond issuance and then have a half a million dollars that will be made available to the City for immediate use and access. It will pay off a large debt obligation and allow the City access to revenue that will come in every month.

Commissioner Burke asked the manager if he was a part of this and does he agree with it.

Acting City Manager Daughtrey said he is not in favor of it and the City should look into suing for the three million dollars that is being held. The City is paying its obligation on time and if the funds are not released, then the City will be cash strapped. It is his intent to come back to the commission after he meets with the state revolving loan agency and see if those funds will be reimbursed so that the capital improvement projects can continue. The bank keeping the funds will only put the City in a bind.

City Attorney Brown said he has an ethical obligation to bring forth the item. The prior city manager had taken the same stance as the current manager and the bank would not relent. His job is to bring forth the item and the commission can vote it up or down, it is their prerogative.

Commissioner Bass asked if it is appropriate to hear what the Finance Department had to say.

Finance Director Bryan Hamilton concurred with the manager and said he does not recommend moving forward with any payments to the bank for the amount.

Mayor Pigatt said he was first made aware of the city manager's opinion on the matter today. He would like to receive information from the manager and the Finance Department before voting on the matter and asked that the item be deferred.

Acting City Manager Daughtrey said there is a difference between a technical default and not paying the principal and interest on an agreement.

Mayor Pigatt asked the attorney if there was a deadline on the item.

City Attorney Brown said, "No." he is fulfilling his ethical obligation by bringing this before the commission.

Mayor Pigatt told the attorney he hears what he is saying, but he wants to see it in black and white. He asked the attorney to provide documentation on the item before the commission votes.

City Attorney Brown said he will defer the item.

Commissioner Burke told the mayor that everyone has heard what the experts have to say regarding the item and there is no need to defer it at this time because they have the information they need to vote on it.

The item was deferred by the sponsor.

g) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE CHANGE ORDERS 1 AND 2 TO THE AGREEMENT WITH DIAMANTI CONSTRUCTION AND DEVELOPMENT, INC, FOR BAHMAN AVENUE PHASE I SANITARY SEWER CONSTRUCTION IN AN AMOUNT NOT TO EXCEED FORTY-SIX THOUSAND NINE HUNDRED FIFTY-SIX DOLLARS AND TWNTY-EIGHT CENTS ($46,956.28); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Commissioner Kelley for discussion.

Commissioner Kelley said he is not a fan of change orders, but knows that the work needs to be done. He asked the city manager if this will fix the problem once and for all.

Acting City Manager Daughtrey said, "Yes."

Vice Mayor Davis asked the city manager to state specifically what the changes are on the order so that the public can be aware.

Acting City Manager Daughtrey said the information can be found in the package that was received by the commission regarding the project.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

h) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE CHANGE ORDERS 1 AND 2 TO THE AGREEMENT WITH DIAMANTI CONSTRUCTION AND DEVELOPMENT, INC, FOR BAHMAN AVENUE PHASE II SANITARY SEWER

CONSTRUCTION IN AN AMOUNT NOT TO EXCEED TWENTY-SIX THOUSAND FOUR HUNDRED TWENTY-THREE DOLLARS AND EIGHTY-TWO CENTS ($26,423.82); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley asked if the manager can look into where the pump station is because it is right near the playground and the residents complain when work is being done so close to the area.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

i) A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CONSIDERING SETTLEMENT IN HOLMES VS CITY OF OPA-LOCKA, FLORIDA, CASE NUMBER 2018-42660 CA 01, PURSUANT TO COURT ORDER; PROVIDINF FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Attorney*

The above resolution was read by Attorney Brown.

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley for discussion.

Commissioner Kelley said this has been paying out for a while with the City and the media. He asked if the resolution was only dealing with the equipment that was installed in the vehicle or the actual vehicle itself.

City Attorney Brown said the lawsuit was filed in late December and nothing happened again until last week when he had to respond to it. He told the commission if Commissioner Holmes is willing to buy the vehicle, then that would eliminate potential costly litigation to the City.

Vice Mayor Davis said he is concerned about all of the lawsuits facing the City and the financial burden it is placing. If a settlement can be reached at fair market value, then he will support the item.

Commissioner Burke said Commissioner Homes is under the impression that he is the rightful owner of the vehicle and he is not, it has always belonged to the City. He is unsure how the commission is now discussing a settlement. He asked the manager if the court order supersedes the process that the City has to go through to turn the vehicle over to Commissioner Holmes because the vehicle belongs to the City and anything that that happens while operating the vehicle will be at a liability to the City.

Acting City Manager Daughtrey said the judge will make the decision regarding the outcome of the vehicle.

City Attorney Brown said the settlement simply means that the City will sell the vehicle to Commissioner Holmes.

Mayor Pigatt said he wants to ensure all of the legal parameters have been covered while handling this matter to avoid any costs that could be incurred by the City.

City Attorney Brown withdrew the item.

Commissioner Burke asked the commission to be mindful that Commissioner Holmes is presently without a vehicle and he cannot walk so he needs transportation to get around.

7. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Commissioner Kelley, seconded by Vice Mayor Davis to adjourn the meeting at 7:54 p.m.

MAYOR

ATTEST:

CITY CLERK